

FEDERAL MARITIME COMMISSION

Office of Administrative Law Judges

EARLEAN EDWARDS DUKART, *Complainant*

v.

OCEAN STAR INTERNATIONAL INC.,
D/B/A INTERNATIONAL VAN LINES, *Respondent*.

DOCKET NO. 20-03

Served: April 27, 2020

BEFORE: Erin M. WIRTH, *Chief Administrative Law Judge*

SUPPLEMENTAL RESPONSE

As Respondents' sole defense relies upon the jurisdiction limitations of the FMC, given the claim that they did not partake in an overseas shipping contract I would like to submit the two booking confirmations received from, and cancelled by the Respondent's, for the record.

Considering the Respondents failure to: fully and completely execute any of the contract provisions; the failure to accurately depict any fault of client that caused any delay other than questioning the inefficient use of space; the fabrications and forgeries submitted in support of denying accountability; Complainant had hoped this matter could have been settled without surpassing mediation. Respondents election to make no effort to be accountable, hiding behind legal shields, increases the obligation to pursue this matter to the end.

Initial inquires into resolving this matter in either Colorado or Florida were met with the understanding that the overseas destination effected the ability for either state to preside over the matter. With that, the additional understanding that Rule 12 of the Commission's Rules of Practice and Procedure were to be interpreted to understand that all matters not covered by the Commission's rules could be inclusively presided over as long as the Federal Rules of Civil procedure are followed.

As a full understanding of this matter could not be established within the allotted time frame, Complainant would like to withdraw the current complaint, preventing dismissal, to leave open the opportunity to pursue the matter under the proper jurisdiction unless continuation is deemed appropriate and ordered otherwise.



Dated April 27, 2020

Earlean Edwards Dukart
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Ocean Star International, Inc.
3961 NW 126 AVENUE
CORAL SPRINGS, FL 33065.
UNITED STATES

Tel: 954-753-4533, Fax: 954-337-0731

Booking Confirmation

Reference	4005736
Carrier Reference	NAM3152876
Creation Date	May/31/2018

Client Information	Equipment Delivery Address
EARLEAN EDWARDS 3243 S BAHAMA ASTREET AURORA, CO 80013. UNITED STATES Tel: 813-205-6109	3243 S BAHAMA ASTREET AURORA, CO 80013. UNITED STATES Spotting Date Jun/06/2018

Carrier	CMA-CGM	Remarks
	PACON	CONTAINER LOADING SCHEDULED FOR : WEDNESDAY 06/05 BY 10 AM
Flight / Voyage	1MA	PLEASE PROVIDE A COPY OF YOUR PASSPORT ID.
Origin Port	New York	
Destination Port	Belize City	
Cut off Date	Jun/07/2018	
Departure Date	Jun/18/2018	
Arrival Date	Jul/04/2018	

Marks and Numbers	Number of Packages	Description of Commodities	Weight	Volume
	1 CNT	40 Ft. Dry Freight USED HOUSEHOLD GOODS/PERSONAL EFFECTS		
Magaya Cargo System . www.magaya.com		Totals	Pieces	Weight
			1	0.00 Kg 0.00 lb
				0.00 ft ³ 0.00 Vlb

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EARLEAN EDWARDS 3243 S BAHAMA ASTREET AURORA, CO 80013. UNITED STATES Tel: 813-205-6109	3243 S BAHAMA ASTREET AURORA, CO 80013. UNITED STATES Spotting Date Jun/13/2018

Carrier	CMA-CGM ARIAN	Remarks
Flight / Voyage	1MA	CONTAINER LOADING SCHEDULED FOR : WEDNESDAY 06/13 BY 10 AM
Origin Port	New York	PLEASE PROVIDE A COPY OF YOUR PASSPORT ID.
Destination Port	Belize City	
Cut off Date	Jun/14/2018	
Departure Date	Jun/24/2018	
Arrival Date	Jul/11/2018	

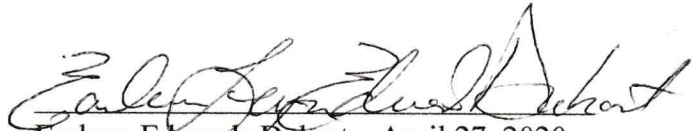
Marks and Numbers	Number of Packages	Description of Commodities	Weight	Volume
	1 CNT	40 Ft. High Cube USED HOUSEHOLD GOODS/PERSONAL EFFECTS		
Magaya Cargo System - www.magaya.com		Totals	Pieces	Weight
			1	0.00 Kg 0.00 lb
				0.00 ft³ 0.00 Vlb

CERTIFICATE OF SERVICE

I hereby certify that on April 27, 2020, I served a true and correct copy of the following document: RESPONSE TO RESPONDENT'S MOTION as an attachment, by electronic mail delivered to:

Craig, Ashley W. <AWCraig@Venable.com>; Dhindsa, Neha
<NDhindsa@Venable.com>; Sudduth, Wes S.
<WSSudduth@Venable.com>

I declare under penalty of perjury that the foregoing is true and correct.


Earlean Edwards Dukart April 27, 2020